

Court No. - 3

Case :- WRIT - C No. - 1319 of 2022

Petitioner :- Dev Singh

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Ajendra Kumar

Counsel for Respondent :- C.S.C.

Hon'ble Surya Prakash Kesarwani,J.

Hon'ble Ashutosh Srivastava,J.

Put up as a fresh case on 16.5.2022, showing the name of Sri Alok Mishra as counsel for respondent No.4.

Learned counsel for the petitioner shall also communicate this order to the learned counsel for respondent No.4.

Order Date :- 7.5.2022

Vandana

Court No. - 3

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Petitioner :- Dev Singh

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Ajendra Kumar

Counsel for Respondent :- C.S.C.,Alok Misra

Hon'ble Surya Prakash Kesarwani,J.

Hon'ble Jayant Banerji,J.

Heard Sri Ajendra Kumar, learned counsel for the petitioner, the learned standing counsel for the State-respondents and Sri Alok Mishra, learned counsel for the respondent No.4.

This writ petition has been filed praying for the following relief:

"(i) Issue a writ, order or direction in nature of certiorari quashing the impugned recovery notice dated 21.09.2021 issued by respondents,

(ii) Issue a writ, order or direction in nature of mandamus directing to respondents not to take coercive process against the petitioner in connection with recovery notice dated 21.09.2021 and to decide and consider representation of the petitioner dated 04.10.2021 pending before respondents."

Sri Alok Mishra, learned counsel for the respondent No.4/ Power Distribution Corporation, states on instructions that the petitioner may file objection against the impugned demand which shall be decided in accordance with law within a time bound period.

In view of the aforesaid and without expressing any opinion on merits of the case of the petitioner, **this writ petition is disposed off** giving liberty to the petitioner to submit his/ her objection under Para 6.5 of U.P. Electricity Supply Code, 2005 before the respondent No.4, within four weeks from today along with a certified copy of this order. In the event such an objection is submitted within the stipulated period, it shall be decided by the respondent No.4 in accordance with law within next four weeks, after affording reasonable opportunity of hearing to the petitioner.

For a period of eight weeks or till disposal of the objection of the petitioner, whichever is earlier, no coercive action shall be taken against the petitioner in pursuance of the impugned demand.

Order Date :- 24.5.2022

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